

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

PLAINTIFF

V.

2021 AUG 10 P 12:40 CASE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

CHANCERY CLERK

DEFENDANT

PETITION FOR MODIFICATION, CITATION FOR CONTEMPT, AND OTHER RELIEF

COMES NOW the Plaintiff, Phyllis Marie Crowder, and files this her Petition for Modification, Citation for Contempt and Other Relief against the Defendant, Matthew Oliver Reardon, and in support thereof would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Matthew Oliver Reardon, is an adult resident citizen of Lafayette County, Mississippi, and may be served with process at his residence in Lafayette County, Mississippi, or wherever he may be found.

3.

That there has been a material change in circumstance that has adversely affected the minor child and therefore the Defendant's visitation with the minor child should be suspended until such time that the Defendant can produce a clean nail bed drug testing screen. That upon information and belief, the Defendant has recently been arrested charged with possession of drugs and/or drug paraphernalia and is currently without a suitable and stable home for the minor child.

4.

That this Court entered the Order attached as Exhibit "A" on August 8, 2016. That according to said Agreed Order to Establish Paternity, Child Custody, and Child Support Agreement, the Plaintiff and Defendant were ordered to pay one-half of any medical, hospitalizations, pharmaceutical, dental, orthodontic, optometric, or mental health expenses of the child of the parties which may be incurred by

the child of the parties, which are not covered by Medicaid or health insurance. The Defendant has not paid his half of the medical expenses despite being provided the same.

5.

The Petitioner requests the Court find the Defendant in contempt of the previous Order of the Court for failure to comply with the aforementioned provision.

6.

That according to the Agreed Order to Established Paternity, Child Custody, and Child Support Agreement, the Defendant was responsible for health insurance for the minor child if she was no longer eligible to coverage through Medicaid. The minor child has not been eligible for Medicaid for nearly three (3) years and yet the Defendant has not obtained adequate health insurance for the child, as previously Ordered.

7.

The Petitioner requests the Court find the Defendant in contempt of the previous Order of the Court for failure to comply with the aforementioned provision.

8.

That according to the Agreed Order to Established Paternity, Child Custody, and Child Support Agreement, the Plaintiff and Defendant were ordered to each pay one-half of any extracurricular activities, including but not limited to lessons, camps, and and/or sports activities, associated with the minor child until the age of twenty-one. The Defendant has not paid his half of these expenses despite being provided the same.

9.

The Petitioner requests the Court find the Defendant in contempt of the previous Order of the Court for failure to comply with the aforementioned provision.

10.

Plaintiff would show that Defendant, Matthew Oliver Reardon, should be required to pay to the Petitioner, Phyllis Marie Crowder, a reasonable sum as attorney's fees for having to bring forth this action and that all costs of Court should be taxed to Matthew Oliver Reardon.

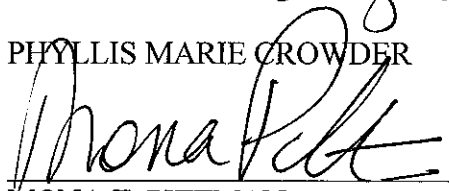
WHEREFORE, PREMISES CONSIDERED, Plaintiff Phyllis Marie Crowder respectfully requests that the Court grant unto her the following relief:

1. That the Court find that there has been a material change in circumstances which have had an adverse effect on the minor child and that visitation with the Defendant be suspended immediately;
2. That the Court order the Defendant to undergo nail bed drug testing;
3. That the Court find the Defendant in civil and criminal contempt of the previously-filed Court Order.
4. That Phyllis Marie Crowder be awarded reasonable attorney's fees and costs suffered in bringing this matter; and,
5. That if mistaken for the relief prayed for and entitled to, then the Plaintiff prays for such other, further, general, specific or special relief to which she may be entitled.

RESPECTFULLY SUBMITTED, this the 9th day of August, 2021.

PHYLLIS MARIE CROWDER

BY:



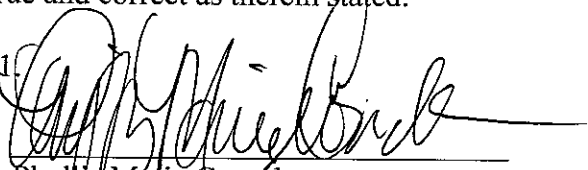
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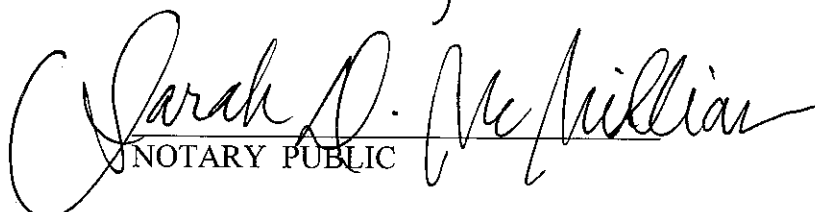
STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Phyllis Marie Crowder, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition are true and correct as therein stated.

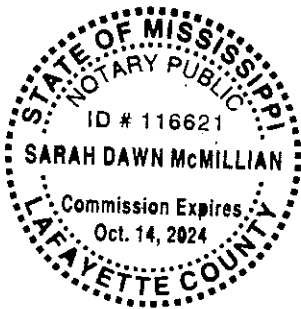
This the 9th day of August, 2021.


Phyllis Marie Crowder

SWORN TO AND SUBSCRIBED BEFORE ME, this the 9th day of August, 2021.


NOTARY PUBLIC

MY COMMISSION EXPIRES:



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2016 AUG -8 PM 2:49

**IN THE MATTER OF THE CUSTODY OF
LYDIA ELISE REARDON**

CAUSE NO.: CV 2016-422

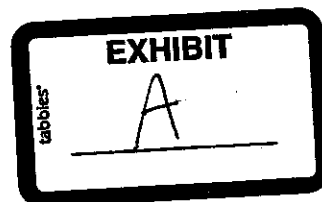
**MATTHEW OLIVER REARDON and
PHYLLIS MARIE CROWDER**

CO-PLAINTIFFS

**AGREED ORDER TO ESTABLISH PATERNITY,
CHILD CUSTODY, AND CHILD SUPPORT**

CAME ON for hearing in the above-referenced matter on the *Joint Complaint to Establish Paternity, Child Custody, and Child Support* filed by Co-Plaintiffs Matthew Oliver Reardon and Phyllis Marie Crowder and the Court finding that it has jurisdiction over the subject matter herein and of the parties hereto, and having been advised that the parties have reached an agreement hereby finds as follows:

1. That on August 19, 2014, Plaintiff Phyllis Marie Crowder gave birth to a female child, namely Lydia Elise Reardon (the "Minor Child");
2. That the Minor Child presently resides with Plaintiff Phyllis Marie Crowder at 22 County Road 422, Water Valley, Lafayette County, Mississippi, and has done so since on or about July 8, 2016;
3. That neither party has participated, as a party or witness or in any other capacity, in any other proceeding concerning the custody of or visitation with the Minor Child;



4. That neither party knows of any other proceeding that could affect the current proceeding, including proceedings for enforcement and proceedings relating to domestic violence, protective orders, termination of parental rights, or adoptions;

5. That neither party knows of any other person not a party to this proceeding that has physical custody of, or claims rights of legal custody of, or visitation with, the Minor Child;

6. That neither party has been married one to the other;

7. That Plaintiff Matthew Oliver Reardon has accepted his paternity of the Minor Child by signing the Minor Child's birth certificate;

8. That Plaintiff Matthew Oliver Reardon is hereby found to be the natural father of the Minor Child;

9. That the parties are both fit and proper to have full care, custody and control of the Minor Child;

10. That the parties have reached an agreement as to the custody and support of the Minor Child as more fully set forth in that document styled *Child Custody, Visitation and Child Support Agreement*, of which a true and correct copy of said document is attached hereto as Exhibit "A" and incorporated herein by reference thereto.

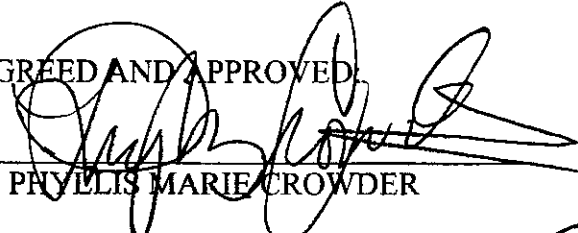
IT IS THEREFORE, ORDERED AND ADJUDGED that the custody and support of Lydia Elise Reardon shall be provided in accord with the provisions of the *Child Custody, Visitation and Child Support Agreement* attached hereto as Exhibit "A" and said agreement is hereby incorporated herein.

SO ORDERED AND ADJUDGED, this 8TH day of August, 2016.



Chancery Judge

AGREED AND APPROVED:


PHYLLIS MARIE CROWDER

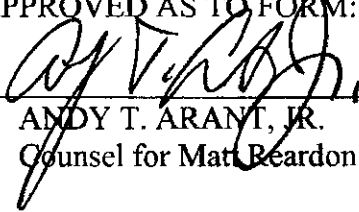
AGREED AND APPROVED:


MATTHEW OLIVER REARDON

APPROVED AS TO FORM:


J. RHEA TANNEHILL, JR.
Counsel for Lizzy Crowder

APPROVED AS TO FORM:


ANDY T. ARANT, JR.
Counsel for Matt Reardon